

**BEFORE THE STATE BOARD OF BEHAVIORAL HEALTH LICENSURE
STATE OF OKLAHOMA**

RECEIVED

STATE OF OKLAHOMA, ex rel.,
STATE BOARD OF BEHAVIORAL
HEALTH LICENSURE,
Petitioner,

vs.

MACHELE ANDERSON,
LPC, LICENSE NO. 1692
Respondent.

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OCT 11 2016

State Board of
Behavioral Health Licensure

Complaint No. 16-LPC-23

CONSENT ORDER

COMES NOW the State of Oklahoma, ex rel, the State Board of Behavioral Health Licensure ("the Board"), by and through its attorney, Marie Schuble, Assistant Attorney General, and Machele Anderson ("Respondent"), and hereby enters into this Consent Order, pursuant to 59 O.S. §1912(A) of the Licensed Professional Counselors Act, 86:10-29-3(b)(2)(C) of the Oklahoma Administrative Code, and 75 O.S. §309(E) of the Administrative Procedures Act. For the purposes of this Consent Order, the following facts are hereby stipulated to by the parties and adopted by the Board:

STIPULATION OF FACTS

1. Respondent is a Licensed Professional Counselor in the State of Oklahoma, holding License Number 1692, and was licensed on or about July 1, 1997.
2. On March 10, 2016, a Request for Inquiry ("RFI") was received by the Board.
3. The RFI alleged the following:
 - a. Respondent was reported to have allowed a former client to live in her home with her, staying in her spare bedroom, from late November 2015 through early

January 2016. As well, the client's children, who were also former clients of Respondent, were allowed to spend the night with Respondent on December 24, 2015.

b. The former clients were discharged from services with Respondent in September 2015.

c. Respondent sent confidential information to an attorney in late February 2016.

d. Respondent was confronted with these allegations by her agency. She openly admitted the violations and was terminated from employment.

e. Prior to the above events, Respondent was counseled by her agency regarding Respondent's release of information to a local news station regarding her status as a missing client's therapist without a formal Release of Information.

4. On August 8, 2016, Respondent was interviewed by Board Investigator Jason Maddox ("Investigator Maddox").

a. Respondent confirmed that she did allow a former client (T.C.) to live at her residence from late November 2015 through early January 2016, for approximately sixty (60) days.

b. Respondent confirmed that T.C.'s children, who were former clients of Respondent, stayed the night at Respondent's home on Christmas Eve 2015.

c. T.C. attended family therapy sessions with her two children who were clients of Respondent. Respondent stated that the children were discharged in July of 2015 from her services.

d. When asked about the release of confidential information, Respondent stated that in October 2015 she had contacted a news reporter because a juvenile client was

missing. Respondent admitted that she “screwed up” in this confidentiality breach by contacting the news reporter.

5. Investigator Maddox contacted the agency that had terminated Respondent. The Director of Human Resources for the agency confirmed that while T.C. was not a client of Respondent, but her two children were and T.C. would attend family counseling services with her children and Respondent. The agency records showed that Respondent stopped providing services to T.C.’s children in September of 2015.

6. In order to resolve all issues raised in the Request for Inquiry filed in this matter, as well as all issues raised during the interview of Respondent by Investigator Maddox, the parties agree to the below Agreed Conclusions of Law and Agreed Order.

AGREED CONCLUSIONS OF LAW

1. The Board has jurisdiction over this matter and Respondent pursuant to

59 O.S. §1905(B)(4) of the Licensed Professional Counselors Act.

2. Respondent agrees that she did not comply with provisions of the Licensed Professional Counselor Act or the Oklahoma Administrative Code:

59 O.S. § 1912. Reasons to Deny, Revoke or Suspend License or Specialty Designation.

A. The State Board of Behavioral Health Licensure may deny, revoke, suspend or place on probation any license or specialty designation issued pursuant to the provisions of the Licensed Professional Counselors Act to a licensed professional counselor, if the person has:

- 5.** Engaged in unprofessional conduct as defined by the rules established by the Board;
- 6.** Engaged in negligence or wrongful actions in the performance of his or her duties;

59 O.S. § 1913.1. Promulgation of Rules – Penalties for Violations.

B. 1. Any person who is determined by the Board to have violated any provision of the Licensed Professional Counselors Act, or any rule promulgated or order issued pursuant thereto, may be subject to an administrative penalty.

2. The maximum administrative penalty shall not exceed Ten Thousand Dollars (\$10,000.00).

3. Administrative penalties imposed pursuant to this subsection shall be enforceable in the district courts of this state.

4. All administrative penalties collected shall be deposited into the Licensed Professional Counselors Revolving Fund.

86:10-1-2. Definitions

"Dual relationship" means a familial, social, financial, business, professional, close personal, sexual or other non-therapeutic relationship with a client, or engaging in any activity with another person that interferes or conflicts with the LPC's or LPC Candidate's professional obligation to a client.

86:10-3-1. Responsibility

It shall be the responsibility of Licensed Professional Counselors (LPCs), in their commitment to the understanding of human behavior, to value objectivity and integrity, and in providing services, to strive to maintain the highest standards of their profession. LPCs shall accept responsibility for the consequences of their work and make every effort to ensure that their services are used appropriately. LPCs shall be alert to personal, social, organizational, financial, and political situations or pressures that might lead to the misuse of their influence. LPCs shall not participate in, condone, or be associated with dishonesty, fraud, deceit or misrepresentation. LPCs shall not exploit their relationships with clients for personal advantage, profit, satisfaction, or interest.

86:10-3-3. Client welfare

(b) Records.

(2) Confidentiality. LPCs shall maintain the confidentiality of any information received from any person or source about a client, unless authorized in writing by the client or otherwise authorized or required by law or court order.

(c) Dual relationships. LPCs shall not knowingly enter into a dual relationship(s) and shall take any necessary precautions to prevent a dual relationship from occurring.

(e) Interaction with former clients. LPCs shall not knowingly enter into a close personal relationship, or engage in any business or financial dealings with a former client for two

(2) years after the termination of the counseling relationship. LPCs shall not engage in any activity that is or may be sexual in nature with a former client for at least five (5) years after the termination of the counseling relationship. LPCs shall not exploit or obtain an advantage over a former client by the use of information or trust gained during the counseling relationship.

86:10-29-14. Administrative penalties

(a) The Board may assess an administrative penalty against an individual if any order issued or approved by the Board includes a finding that the individual:

(1) Violated any provision of the Act, including practicing licensed professional counseling without being licensed, under supervision, or exempt; or

(2) Violated any rule of the OAC as it relates to licensed professional counseling; or

(3) Violated any order issued by the Board.

(b) The total amount of the administrative penalty assessed shall not exceed ten thousand dollars (\$10,000.00) for any related series of violations.

AGREED ORDER

The Board and Respondent agree to the following Order:

1. Respondent shall take a 3-hour graduate level course on ethics, as defined by OAC 86:10-9-2(a)(5)¹. The class must be taken in person, not online.

2. Respondent shall complete an additional 500 hours of supervision with a supervisor, chosen by Respondent, who has been approved by the Board as a Supervisor.

a. Documentation of the additional supervision hours must be reported to the Board on a monthly basis until complete.

b. The additional supervision hours must be completed within six (6) months of the effective date of this Order.

¹ OAC 86:10-9-2(a)(5): Professional orientation/ethics - at least one (1) course which deals primarily with the objectives of professional counseling organizations, codes of ethics, legal aspects of practice, standards of preparation and the role of persons providing direct counseling services.

3. Respondent shall pay an administrative fine in the amount of \$270.00.
4. Respondent understands and agrees that should any future instances be brought to the attention of the Board in which Respondent has violated the Licensed Professional Counselor Act or the Oklahoma Administrative Code, the Board reserves the right to prosecute such violations and to consider this Consent Order as a factor in the determination of any sanctions and penalties, if any, should the Board determine that any violation has occurred.
5. Failure to comply with any of the terms of this Order may result in further disciplinary action against Respondent.

PUBLIC RECORD

Respondent acknowledges that once adopted by the Board, this Consent Order and all associated documentation becomes a matter of public record, unless otherwise excluded by law.

ACCEPTANCE BY BOARD

This Consent Order will not be submitted for Board consideration until it has been agreed to and executed by Respondent. The Consent Order shall not become effective until it has been approved by a majority of the Board, endorsed by a representative of the Board and been approved by the Oklahoma Office of the Attorney General pursuant to Antitrust Review.

It is hereby agreed between the parties that this Consent Order shall be presented to the Board with a recommendation of approval from the Board at the Board Meeting scheduled for October 7, 2016. Respondent understands that the Board is free to accept or reject this Consent Order and, if rejected by the Board, a formal disciplinary hearing on the Complaint

against Respondent may be held.

If the Consent Order is not accepted by the Board, it shall be regarded as null and void. Admissions by Respondent in the Consent Order will not be regarded as evidence against her at the subsequent disciplinary hearing. Respondent will be free to defend herself and no inferences will be made from her willingness to have entered into this agreement. It is agreed that neither the presentation of the Consent Order nor the Board's consideration of the Consent Order will be deemed to have unfairly or illegally prejudiced the Board or its individual members and therefore will not be grounds for precluding the Board or any individual Board member from further participation in proceedings related to the matters set forth in this Consent Order.

VOLUNTARY WAIVER OF RIGHTS

Respondent is fully aware of her rights to contest the charges pending against her. Respondent acknowledges these rights include: representation by an attorney at her own expense; the right to a public hearing on any charges or allegations filed; the right to confront and cross-examine witnesses called to testify; the right to present evidence on her own behalf; the right to compulsory process to secure attendance of such witnesses; the right to testify on her own behalf; the right to receive written findings of fact and conclusions of law supporting the decision on the merits of the Complaint; and the right to obtain judicial review of the Board's decision. Respondent, in exchange for the Board's acceptance of this Consent Order, voluntarily waives all of these rights.

COMPLETE AGREEMENT

This Consent Order consists of nine (9) pages and embodies the entire agreement between the Board and Respondent. It may not be altered and modified without the express consent of the parties.

Amy Barnett
AMY BARNETT, LPC CC Board Member

Dated this 7 day of October, 2016.

IT IS SO ORDERED.

STATE BOARD OF BEHAVIORAL HEALTH LICENSURE

By: Dr. Kelly Collins, LPC
BOARD MEMBER

Dated this 7 day of October, 2016.

I have read the entirety of this Consent Order. I understand that by its terms I waive certain rights accorded me under Oklahoma law. I agree to this Consent Order:

Machele Anderson
MACHELE ANDERSON, Respondent

Dated this 29 day of September, 2016.

CERTIFICATION OF BOARD ATTORNEY

I believe this Consent Order to be in the best interests of the State Board of Behavioral Health Licensure and the State of Oklahoma for the violations as outlined in the foregoing Consent Order.

Dated this 30 day of September 2016.



MARIE SCHUBLE, OBA NO. 30247

Assistant Attorney General

State of Oklahoma

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**ATTORNEY FOR THE STATE OF OKLAHOMA
STATE BOARD OF BEHAVIORAL HEALTH
LICENSURE**